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RECEIVED

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July 16, 2003

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Division of Minerals and Geology

Ms. Erica S. Crosby
Environmental Protection Specialist
Colorado Division of Minerals and Geology
1313 Sherman Street, Room 215
Denver, Colorado 80203

**RE: Cemex, Inc.; Lyons Quarry, Permit No. M-1977-208
Technical Revision 02; Response to Adequacy Letter**

Dear Erica:

This letter is in response to your Adequacy Letter dated June 30, 2003 for the Lyons Quarry. We have addressed your questions in the same order as presented in your letter:

1. **Concrete Disposal Area—Reclamation Plan:** We accept the Division's assessment that the 10 acre concrete disposal area should not be irrigated, and would like to designate this area as dryland pasture. This area will be reclaimed and seeded with the dryland pasture seed mix specified in the 1977 permit application.

2. **Source and Volume of Material:**

	Source	Volume
Clay Liner	Purchased geosynthetic liner or clay from Dowe Flats quarry.	3 foot thick x 10 ac = 1,306,800 ft ³ clay = 48,400 yd ³
Clay Liner Protective Cover	Overburden from site or Dowe Flats quarry.	3 foot thick x 10 ac = 1,306,800 ft ³ = 48,400 yd ³
Above Rubble Pile	30" overburden plus 4-6" topsoil from site or Dowe Flats quarry.	40,333 yd ³ overburden + 8,067 yd ³ topsoil

3. **Topsoil Over Concrete Disposal Area:** 4-6 inches of topsoil will be salvaged and replaced over the concrete disposal pile. Dryland pasture seed mix will be applied as specified in the 1977 permit application.

4. **Water Infiltration from Swede Ditch:** Please see the updated "On-Site Disposal Cell Map Revision" (enclosed) for the correct locations of the Swede and Smeade Ditches, and a cross section of the north-south topography through the proposed concrete disposal area. The Swede ditch is located on the opposite side of the hogback from the proposed disposal area and therefore will not be a potential source of water infiltration. The Smeade Ditch crosses the proposed disposal area. Cemex proposes to completely enclose or pipe the ditch through the disposal area so that no infiltration will occur. Surface runoff from the area will be directed to a diversion ditch around the disposal area, which will then enter the Smeade Ditch on the east side of the disposal site.
5. **Seed Mix:** The seed mixes for both dryland pasture and irrigated pasture listed in the 1977 permit application are appropriate. Both the dryland pasture and irrigated pasture seed mixes will be obtained from the Arkansas Valley Seed Company. Please disregard the seed mix noted on the previously submitted "On-Site Disposal Cell Map".

Please let me know if you need additional information to approve this technical revision. Thank you.

Sincerely,



Maureen Jacoby

cc: John Lohr, Cemex, Inc.